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JUDGMENT SHEET

LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

Writ Petition No.14059 of 2020

Muhammad Ali Shah vs. Inspector General of Police, etc.

J U D G M E N T

Date of Hearing:	14.04.2025
Petitioner by:	Mr. Muhammad Yafis Naveed Hashmi, Advocate.
Respondents by:	Malik Muhammad Bakhsh Khaki, Assistant Advocate General along with Iftikhar, DSP, Ali Hassan, Sub-Inspector D.G. Khan, Farooq Ahmad, Traffic Warden, Rajanpur and Baqar Murtaza, Assistant, Punjab Public Service Commission.

Anwaar Hussain, J. The Punjab Police-respondents No.1 to 3 (“**Police Department**”), through respondent No.4-Punjab Public Service Commission (“**the Commission**”) invited online applications for recruitment against 13 posts of Assistant Sub-Inspector/BPS-11 (“**ASI**”), D.G. Khan Quota, *vide* advertisement dated 07.07.2019. Admittedly, the merit list was prepared on 05.12.2019 and the petitioner could not come within the orbit of selection, however, stood at Serial No.1 of the waiting list. It is also admitted position that one of the selected candidates, namely, Muhammad Zeeshan son of Muhammad Ramzan left the post of ASI as he was appointed as Sub-Inspector, on 09.03.2020. Neither

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the Police Department nor the Commission initiated the process of appointing the candidates from the waiting list, which constrained the petitioner to file constitutional petition bearing W.P. No.4885/2020 seeking direction to the respondents to recommend his name for the post of ASI. Through order dated 22.04.2020, direction was passed by this Court to decide the application of the petitioner, which was dismissed by the Police Department, through impugned order dated 24.08.2020 on the ground that the Police Department is not obligated to seek substitute from the waiting list. Hence, this constitutional petition.

2. Learned counsel for the petitioner submits that no fault can be attributed to the petitioner if the validity period of the waiting list (12 Months) has elapsed. Conversely, learned Law Officer, on instructions of the departmental representatives, and on the strength of the report and parawise comments submits that since the validity period has elapsed, therefore, the petitioner cannot be appointed. Iftikhar, DSP (Legal) submits that the Police Department is not bound to demand the substitute and fresh recruitment has also been carried out and placed reliance on the case reported as The Secretary Punjab Public Service Commission, Lahore and others vs. Aamir Hayat and others (2019 SCMR 124). The representative of the Commission submits that since the Police Department has not made any request to provide substitute, therefore, they are not obligated to recommend the name of the petitioner. In rebuttal, learned counsel for the petitioner relied upon case reported as Government of Punjab through Secretary Cooperative Societies Department, Lahore and others vs. Asad Abbas (2022 SCMR 739) and contends that the case of the petitioner is distinguishable from the facts of case of Aamir Hayat supra. He also refers to case of one Bilal Hassan Buttar, who was on the waiting list prepared during the same period, in Sheikhpura region, and has been appointed on 18.12.2023 after the lapse of more than four years.

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3. Arguments heard. Record perused.

4. The legal question involved in the matter is to adjudicate whether an administrative department of Government of the Punjab- the Police Department in the instant case, is under obligation to request the Commission for provision of substitute from the waiting list during period of validity of the list.

5. After a recruitment process is concluded, both a merit list and a separate waiting list are prepared. The purpose of a waiting list is not merely procedural but practical, allowing the department(s) to fill the vacancies efficiently where a candidate from the original selection either fails to join or resigns, provided the vacancy occurs within the validity period of the list. The importance of maintaining and adhering to a waiting list by offering employment opportunities to the next eligible candidate(s) has been scrutinized by the Courts in numerous reported judgments. In case of Shabana Akhtar vs. District Coordination Officer, Bhakkar and two others (2012 PLC (C.S.) 366), a learned Division Bench of this Court emphasized the advantages of a merit-cum-waiting list and held that when a vacancy arises, it should be promptly filled from the waiting list, without initiating a fresh recruitment process and without keeping posts vacant for an extended period. The said learned Division Bench observed that waiting list could save public money, human resource and the requirement to resort to full-fledged recruitment process, which may take its own financial and administrative toll just to fill in one or two seats. Case reported as Rafaqat Ali vs. Executive District Officer (Health) and others (2011 PLC (C.S.) 1615) is also referred. Similarly, in the case reported as Asad Abbas vs. Government of the Punjab through Secretary Cooperative Societies Department, Lahore and others (2024 PLC (C.S.) 142), through judgment dated 20.09.2021, this Court held that if a selected candidate does not join, the department is obligated to offer the appointment to the next candidate on the merit list and if this process

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is not initiated, the fault lies with the department for failing to proactively seek a substitute and the petitioner in that case was held not liable to suffer due to the lapse or negligence of the department. It is worth mentioning that the judgment in case of *Asad Abbas supra* was challenged by the Government and the matter was scrutinized by the Supreme Court of Pakistan and through reported judgment in case of *Government of the Punjab supra*, the findings of this Court in case of *Asad Abbas supra* were upheld. The operative part of the judgment of the Supreme Court in case of *Government of the Punjab supra* affirms the principle of considering the next candidate on the waiting list and reinforcing the doctrine of legitimate expectation. It is pertinent to state that reliance placed on case of *Aamir Hayat supra* is misplaced inasmuch as the facts are distinguishable. In the said case, the department did not exercise discretion by calling for the substitute as large number of vacancies occurred, which were required to be filled through fresh recruitment whereas in the instant case, the fresh recruitment only took place during the pendency of the present petition. In the said case, the Supreme Court struck a balance between the rights of the candidate on waiting list and the necessity to retain discretion with the department to go for the larger pool in order to achieve competitiveness but only where the seats other than the one occurred on account of non-joining of selected candidate(s) were vacant. However, where the seats otherwise are not vacant and/or the department does not opt to recruit fresh candidate by making fresh advertisement, the right of the candidate in the queue on waiting list cannot be denied. The rationale extended by the department and lauded by the august Supreme Court in case of *Aamir Hayat supra* is conspicuous by its absence, in the instant case. Moreover, in case reported as *Dr. Sumera Tabassum vs. F.P.S.C and others* (2016 SCMR 196) where the requisition was not made by the administrative department after lapse of validity period

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of the waiting list, the Supreme Court held that such lapse cannot be attributed to the candidate and the validity period could be extended on justifiable grounds.

6. Having the above legal position on the subject in sight, this Court is of the opinion that the present controversy stems from the Police Department's failure to act fairly and transparently in the recruitment process by disregarding the importance of the waiting list, despite the consistent interpretation by the Superior Courts emphasizing its value/sanctity. The Police Department erroneously concluded that it had no obligation to demand a substitute, especially when the petitioner had approached the department through a proper application, within the 12-month validity period in terms of Regulation No.63 of the Punjab Public Service Commission Regulations, 2016. Moreover, it is admitted that fresh recruitment was conducted during the pendency of the present petition. Furthermore, the Police Department could not refute that one Bilal Hassan Buttar, who was also on the waiting list in the Sheikhpura region, has been appointed. Despite all-out efforts, no distinguishing feature could be demonstrated by the respondents to justify a different treatment meted out to the petitioner in the present case. This selective application of the rules reflects arbitrariness and discrimination, undermining the principles of merit, equality, and legitimate expectation. Mere fact that the case of the petitioner and that of Bilal Hassan Buttar belong to two different regions is of no persuasion and force as the Police Department across the Province stands as one whole body and no legal justification exists to apply different standards and/or treatment in different regions. The government departments are obligated to remain consistent in application of their departmental practice and any selective and arbitrary deviation is preposterous, to say the least, and is a set recipe for corruption at the cost of and to the detriment of transparency and fairness which, in itself, has the potential to hit back at the functioning of the

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department and service delivery standards. Such inconsistent conduct not only violates the petitioner's rights but also erodes the credibility of the recruitment process.

7. Examining the matter from another angle: in cases where an eligible candidate from the waiting list makes a timely application for appointment against the resultant vacancy, the department concerned is under a legal and administrative obligation to deal with that request expeditiously. It cannot leave such an application pending for an indefinite period or brush it aside simply on the ground that the department is not under an obligation to recommend the name of such a candidate. At the same time, it is acknowledged that during the currency of a waiting list, new vacancies may arise independently—such as due to superannuation, promotion to higher posts, or administrative sanction of additional posts of the same cadre/grade. Where the number of such new vacancies is significant, the department may reasonably decide that, instead of appointing only one or two candidates from the waiting list (e.g., against non-joined posts), it would be more appropriate to consolidate all such vacancies into a new recruitment cycle, even before the expiry of the validity period of the waiting list. However, even in such cases, the department must not act arbitrarily. If a candidate from the waiting list has made an application pointing to a specific, available vacancy, the department must pass a reasoned and timely order—preferably within one month from the date of receipt of an application from the candidate from waiting list. This enables the candidate to exercise an informed choice: whether to accept the rejection or to challenge the same or to prepare for the next recruitment process. The use of the waiting list, as held in the case of Shabana Akhtar *supra*, promotes economic efficiency and continuity of service, and its utility should not be defeated by inertia on the part of the administrative department concerned. An administrative department—the Police Department in the present

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case, cannot be allowed to ignore a vacancy, refuse to recommend a candidate from the waiting list without giving any reasons, and also fail to start a fresh recruitment process. If the department delays the matter in this manner and let the validity period expire, it cannot later take shelter behind the lapse of time. Such conduct amounts to unfair administrative practice and is legally unacceptable.

8. In the present case, it is an admitted position that the petitioner applied for recommending his name well within the validity period of the waiting list, which was turned down, and fresh recruitment was carried out during the pendency of this petition. The petitioner cannot be blamed for the lapse of the validity period. Therefore, this petition merits acceptance.

9. In view of the above discussion, the present petition is **allowed** and the respondents are directed to forthwith process the appointment of the petitioner as Assistant Sub-Inspector. Office is directed to transmit a copy of this judgment to the Chief Secretary, Government of Punjab, who shall circulate it to all administrative departments for compliance of direction(s) of this Court recorded in para 7.

(ANWAAR HUSSAIN)
JUDGE

Approved for reporting.

Judge

Akram